

#	Case Name	Tentative
		10/9/24 and 4/23/24, respectively. (See Kim Decl. ¶¶ 4-5, Exs. B-C.) Requests for judicial notice. Shipjoy's and plaintiff OCMH, Inc.'s requests for judicial notice are GRANTED. (See Evid. Code, § 452, subd. (d).) The court sets a status conference regarding the appeal for September 18, 2026 at 9:00 a.m. in Department C28. Shipjoy shall give notice of this ruling.
58.	Wardlow v. Evans Roofing Co., Inc. 2026-01555475	Defendant Evans Roofing Co., Inc.'s petition / motion to compel arbitration is GRANTED. (Code Civ. Proc., § 1281.2 [authorizing motion to compel arbitration].) Plaintiff Zachary Wardlow shall submit his claims against defendant to binding arbitration pursuant to their agreement. This action is stayed pending completion of arbitration. (Code Civ. Proc., § 1281.4.) The court sets a status conference re: binding arbitration for February 19, 2027 at 9:00 a.m. in Department C28. Five days before the status conference, the parties are ordered to submit a joint status report. Defendant met its burden to show a written arbitration agreement exists that covers plaintiff's claims. (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 ["Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence"]; <i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 164-166 [same, plus three-step process where signature disputed, not present here]; Ex. A to Petition [executed agreement requiring arbitration of "any claim, dispute, and/or controversy concerning any aspect of my employment ... that either I or the Company ... may have against each other which would otherwise require or allow resort to any court or other governmental dispute resolution forum arising from, related to, or having any relationship or connection whatsoever with my seeking employment with, employment by, or other association with the Com-pany, whether based on tort, contract, statutory, or equity, or otherwise," with exceptions not present here]; Fleischman Decl., ¶¶ 2, 5, 6 [employment relationship, authenticating arbitration agreement].) Plaintiff also fails to show that arbitration should be denied on unconscionability grounds. (<i>Armendariz v. Foundation Health</i>

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		<i>Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 114 [“<i>Armendariz</i>”] [both procedural and substantive unconscionability must be present in order for a court to exercise its discretion to refuse to enforce a contract under the doctrine of unconscionability].) Some procedural unconscionability is present, as there does not appear to be any dispute that execution of the arbitration agreement was a condition of employment. (Fleischman Decl., ¶ 5 [“All personnel who commence or continue employment with EVANS ROOFING CO., INC. are required to comply with the Company’s alternative dispute resolution policy, which includes the mandatory arbitration of employment-related claims”]; <i>OTO, L.L.C. v. Kho</i> (2019) 8 Cal.5th 111, 127–128 [standardized arbitration agreement as condition of employment].) However, plaintiff fails to show substantive unconscionability, which is also required. (<i>Armendariz, supra</i> at 114.) That the arbitration agreement is silent as to costs is not fatal. (<i>Id.</i> at 113 [employment arbitration agreement interpreted to require employer “to pay all types of costs that are unique to arbitration ... The absence of specific provisions on arbitration costs would therefore not be grounds for denying the enforcement of an arbitration agreement”]; accord, <i>Little v. Auto Stiegler, Inc.</i> (2003) 29 Cal.4th 1064, 1080–1081 [“We similarly conclude that an agreement to arbitrate a claim of wrongful termination contrary to public policy must be interpreted to implicitly include an agreement to proportion costs in a manner that is reasonable for the employee / claimant, in order to prevent the de facto waiver of unwaivable rights”].) The same is true of the provision allowing either party to seek review of the original arbitrator’s decision by a second arbitrator; further, there is no cost threshold for such review. (<i>Cummings v. Future Nissan</i> (2005) 128 Cal.App.4th 321, 330, FN 9, citing <i>Little v. Auto Stiegler, Inc., supra</i> [“A second level of review ... is not invalid so long as there is no dollar amount threshold for invoking it (which would make it almost exclusively an employer remedy)”].) Plaintiff cites no authority that an arbitration agreement that fails to identify a specific arbitration provider is substantively unconscionable. It is sufficient that a neutral arbitrator is designated, which is the case here. (<i>Armendariz, supra</i> at 102 [an arbitration agreement in the employment context “is lawful if it: ‘(1) <u>provides for neutral arbitrators</u>, (2) provides for more than minimal discovery, (3) requires a written award,

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		(4) provides for all of the types of relief that would otherwise be available in court, and (5) does not require employees to pay either unreasonable costs or any arbitrators' fees or expenses as a condition of access to the arbitration forum;"" emphasis added, internal citations omitted]; Ex. A to Petition [requiring arbitration by "a retired California Superior Court Judge" who "shall be subject to disqualification on the same grounds as would apply to a judge of such court"].) The remaining <i>Armendariz</i> factors are also satisfied. (Ex. A to Petition [incorporating discovery provisions of Code Civ. Proc., § 1283.05 "and all of the Act's other mandatory and permissive rights to discovery," written award, no limits on available relief].) Finally, failure to provide arbitral rules is grounds to find procedural unconscionability, not substantive unconscionability. (<i>Carbajal v. CWPSC, Inc.</i> (2016) 245 Cal.App.4th 227, 244–245 [collecting cases].) The case management conference is VACATED. Moving party shall give notice of this ruling.
59.	Bond v. California Department of Motor Vehicles 2026-01557585	Petitioner Rody John Bond's petition for writ of mandate is CONTINUED to September 14, 2026 at 2:00 p.m. in this department. Bond is ordered to serve the Department of Motor Vehicles with the petition and notice of the continued hearing no later than July 17, 2026, and file a proof of service with the court within 5 days of service. Bond shall also lodge a copy of the administrative record with the court by August 17, 2026. The court sets an Order to Show Cause hearing for August 28, 2026 at 9:00 a.m. to address why this petition should not be dismissed. If Bond fails to comply with the above order, the petition shall be dismissed, unless Bond appears on August 28, 2026 and shows good cause why the petition should not be dismissed. Clerk shall give notice of this ruling.
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